

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Russo	Team: Squad #10	CCRB Case #: 202204273	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 06/23/2022 6:40 PM, Thursday, 06/23/2022 6:45 PM	Location of Incident: § 87(2)(b) 103rd Precinct stationhouse	18 Mo. SOL 12/23/2023	Precinct: 103		
Date/Time CV Reported Thu, 06/23/2022 11:05 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/30/2022 1:27 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Derval Whyte	25206	971274	103 PCT
2. PO Gregory Gromling	14995	956704	103 PCT
3. PO George Bodenmiller	26100	972383	103 PCT
4. PO Garrett Poliey	10508	965421	103 PCT
5. PO Matthew Simpson	07363	957168	103 PCT
6. LT John Jata	00000	943398	103 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT SA Justin Caliguri	01902	953778	103 PCT
2. LT Alex Morocho	00000	939794	103 PCT
3. PO Christian Mele	29333	965331	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO Derval Whyte	Abuse: In front of § 87(2)(b) Police Officer Derval Whyte stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	§ 87(2)(b)
B. PO George Bodenmiller	Abuse: In front of § 87(2)(b) Police Officer George Bodenmiller stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	§ 87(2)(b)
C. PO George Bodenmiller	Force: In front of § 87(2)(b) Police Officer George Bodenmiller used physical force against § 87(2)(b)	§ 87(2)(b)
D. PO George Bodenmiller	Force: In front of § 87(2)(b) Police Officer George Bodenmiller used a chokehold against § 87(2)(b)	§ 87(2)(b)
E. PO George Bodenmiller	Force: In front of § 87(2)(b) Police Officer George Bodenmiller used physical force against § 87(2)(b)	§ 87(2)(b)
F. LT John Jata	Force: In front of § 87(2)(b) Lieutenant John Jata used physical force against § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
G.PO Matthew Simpson	Force: In front of § 87(2)(b) Police Officer Matthew Simpson used physical force against § 87(2)(b)	
H.PO Derval Whyte	Force: In front of § 87(2)(b) Police Officer Derval Whyte used physical force against § 87(2)(b)	
I.PO Gregory Gromling	Force: In front of § 87(2)(b) Police Officer Gregory Gromling used physical force against § 87(2)(b)	
J.PO Gregory Gromling	Abuse: In front of § 87(2)(b) Police Officer Gregory Gromling forcibly touched § 87(2)(b)	
K.PO Gregory Gromling	Abuse: In front of § 87(2)(b) Police Officer Gregory Gromling conducted a sexually motivated frisk of § 87(2)(b)	
L.PO George Bodenmiller	Force: In front of § 87(2)(b) Police Officer George Bodenmiller used physical force against § 87(2)(b)	
M.PO Matthew Simpson	Force: In front of § 87(2)(b) Police Officer Matthew Simpson used physical force against § 87(2)(b)	
N.PO Gregory Gromling	Force: In front of § 87(2)(b) Police Officer Gregory Gromling used physical force against § 87(2)(b)	
O.PO George Bodenmiller	Force: In front of § 87(2)(b) Police Officer George Bodenmiller used physical force against § 87(2)(b)	
P.PO Matthew Simpson	Force: In front of § 87(2)(b) Police Officer Matthew Simpson used physical force against § 87(2)(b)	
Q.PO Gregory Gromling	Force: In front of § 87(2)(b) Police Officer Gregory Gromling used physical force against § 87(2)(b)	
R.PO Gregory Gromling	Force: In front of § 87(2)(b) Police Officer Gregory Gromling used a chokehold against § 87(2)(b)	
S.PO Gregory Gromling	Force: In front of § 87(2)(b) Police Officer Gregory Gromling restricted § 87(2)(b) breathing.	
T.PO Gregory Gromling	Force: In front of § 87(2)(b) Police Officer Gregory Gromling used physical force against § 87(2)(b)	
U.PO George Bodenmiller	Abuse: In front of § 87(2)(b) Police Officer George Bodenmiller forcibly touched § 87(2)(b)	
V.PO Garrett Poliey	Abuse: In front of § 87(2)(b) Police Officer Garrett Poliey threatened to arrest § 87(2)(b)	
W.PO Garrett Poliey	Force: In front of § 87(2)(b) Police Officer Garrett Poliey used physical force against § 87(2)(b)	
X.PO Gregory Gromling	Force: At the 103rd Precinct Stationhouse, Police Officer Gregory Gromling used physical force against § 87(2)(b)	
Y.PO Gregory Gromling	Discourtesy: At the 103rd Precinct Stationhouse, Police Officer Gregory Gromling spoke discourteously to § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On June 23, 2022, Lieutenant Alex Morocho, of the 103rd Precinct, filed this complaint on behalf of § 87(2)(b) with the Internal Affairs Bureau by phone. On June 30, 2022, the CCRB received this complaint with original IAB log number § 87(2)(b).

On June 23, 2022, at approximately 6:40 p.m., in front of § 87(2)(b) in Queens, Police Officers Derval White and George Bodenmiller, of the 103rd Precinct, stopped the vehicle in which § 87(2)(b) and his sister, § 87(2)(b) were occupants, regarding the violation of an order of protection that his child's mother, § 87(2)(b) allegedly had against him (**Allegations A and B: Abuse of Authority-Vehicle Stop**, § 87(2)(g) PO Bodenmiller opened the driver's side door and allegedly pulled § 87(2)(b) out of the vehicle by pulling his shirt, which made contact with his neck and throat (**Allegation C: Force-Physical Force**, § 87(2)(g) (**Allegation D: Force-Chokehold**, § 87(2)(g)

Lieutenant John Jata, as well as Police Officers Matthew Simpson, Gregory Gromling, and Garrett Poliey, all of the 103rd Precinct, also responded to the scene.

Upon removing him from the vehicle, PO Bodenmiller, PO Gromling, PO Whyte, PO Simpson, and Lieutenant Jata allegedly pulled § 87(2)(b) arms backwards and placed him in handcuffs (**Allegations E, F, G, H, and I: Force-Physical Force**, § 87(2)(g) PO Gromling allegedly reached inside of § 87(2)(b) sweatpants and pinched the inside of his buttocks (**Allegation J: Abuse of Authority-Sexual Misconduct (Forcible Touching)**, § 87(2)(g) (**Allegation K: Abuse of Authority-Sexual Misconduct (Sexually Motivated Frisk)**, § 87(2)(g)

Once in handcuffs, PO Bodenmiller, PO Simpson, and PO Gromling pulled § 87(2)(b) toward a marked patrol vehicle by his arms and lifted his legs off the ground (**Allegations L, M, and N: Force-Physical Force**, § 87(2)(g) They then allegedly "threw" § 87(2)(b) into the vehicle (**Allegations O, P, and Q: Force-Physical Force**, § 87(2)(g) PO Gromling allegedly choked § 87(2)(b) (**Allegation R: Force-Chokehold**, § 87(2)(g) (**Allegation S: Force-Restricted Breathing**, § 87(2)(g) PO Gromling walked around the vehicle and allegedly pulled § 87(2)(b) further into the vehicle by his handcuffs (**Allegation T: Force-Physical Force**, § 87(2)(g) § 87(2)(b) stated that PO Bodenmiller "touched his privates" several times while the officers placed him into the police vehicle (**Allegation U: Abuse of Authority-Sexual Misconduct (Forcible Touching)**, § 87(2)(g)

§ 87(2)(b) who had exited § 87(2)(b) vehicle on the passenger side, attempted to reach into the vehicle to grab her belongings. PO Poliey threatened to arrest her and physically pulled her away from the vehicle (**Allegation V: Abuse of Authority-Threat of Arrest**, § 87(2)(g) (**Allegation W: Force-Physical Force**, § 87(2)(g)

Police Officer Christian Mele, Sergeant Justin Caliguri, and Lieutenant Alex Morocho arrived on scene but had little to no involvement.

PO Gromling and PO Bodenmiller transported § 87(2)(b) to the 103rd Precinct stationhouse. Upon arrival, at approximately 6:45 p.m., PO Gromling pulled § 87(2)(b) out of the vehicle and told him to "get out of the fuckin' car" (**Allegation X: Force-Physical Force**, § 87(2)(g) (**Allegation Y: Discourtesy-Word**, § 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) was arrested as a result of this incident. § 87(2)(b)

As such, the investigation was unable to obtain a copy of his arrest report.

The investigation obtained Body-Worn Camera videos from all of the named officers (**BR01, BR02**), as well as surveillance footage from § 87(2)(b) department store on § 87(2)(b) (**BR03**). The store manager, § 87(2)(b) witnessed this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: In front of § 87(2)(b) Police Officer Derval Whyte stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: In front of § 87(2)(b) Police Officer George Bodenmiller stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) initial 911 call (BR10), made at 6:14 p.m., notes, at the 00:05 mark, that someone § 87(2)(b) has a restraining order against her and will not let her leave her job, located at § 87(2)(b). At the 00:56 mark, § 87(2)(b) confirms that she also has an order of protection against § 87(2)(b). At the 03:34 mark, § 87(2)(b) confirms that § 87(2)(b) is driving a Silver Nissan. At the 04:07 mark, she provides his New York license plate number as § 87(2)(b).

At 6:33 p.m., § 87(2)(b) boss called 911, as well (BR11). At the beginning of the audio, the boss confirms that § 87(2)(b) was in her [the boss's] vehicle because she is scared for her life. She confirms that § 87(2)(b) is in his vehicle, which is parked directly in front of her [the boss's] vehicle. At the 02:08 mark, the boss confirms that § 87(2)(b) is in a Silver Nissan, with license plate number § 87(2)(b).

PO Whyte's BWC (BR04) shows, at the 00:56 mark, that PO Whyte arrives on scene and exits his vehicle. § 87(2)(b) boss immediately approaches him, points behind her and says, "He's leaving." She continues pointing and identifies a silver vehicle. She begins reading the license plate, stating "§ 87(2)(b)". § 87(2)(b) boss says that he § 87(2)(b) has been harassing "her", and points to a parked vehicle where § 87(2)(b) is sitting. § 87(2)(b) boss says that § 87(2)(b) is not supposed to be next to § 87(2)(b). At the 01:15 mark, PO Whyte approaches the silver vehicle, which is slowly driving forward. PO Whyte says over the radio, "Simpson, cut off this car right here," regarding the silver vehicle. As PO Whyte approaches, the silver vehicle's license plate is revealed—§ 87(2)(b). At the 01:33 mark, PO Whyte taps on the rear of the silver vehicle and says to roll the windows down. The passenger § 87(2)(b) lowers her window and the vehicle stops.

§ 87(2)(b) Department Store surveillance footage (BR03) captures § 87(2)(b) boss approaching PO Whyte and PO Bodenmiller and pointing at § 87(2)(b) vehicle at the 12:53 mark. At the 13:18 mark, the officers approach § 87(2)(b) vehicle. Another police vehicle approaches from the opposite direction. Multiple officers, including Lieutenant Jata, approach § 87(2)(b) vehicle and escort him out.

§ 87(2)(b) (BR05) stated that his sister, § 87(2)(b) was running an errand by the Cohen's Fashion Optical store on 163-34 Jamaica Avenue, while he remained in his vehicle by the store. § 87(2)(b) drove a silver Nissan Altima with license plate § 87(2)(b). An argument ensued between § 87(2)(b) and § 87(2)(b) at the rear of § 87(2)(b) vehicle. § 87(2)(b) called 911. § 87(2)(b) entered the passenger seat of § 87(2)(b) vehicle and they drove toward 164th Street. One marked police vehicle stopped in front of § 87(2)(b) vehicle, and another stopped directly behind. § 87(2)(b) asked the officers why he was being stopped, but no one responded, so § 87(2)(b) inched his vehicle forward. About five officers approached § 87(2)(b) vehicle and asked him to step out. § 87(2)(b) was unaware why he was stopped, as he did not believe he was conducting any VTL infractions.

§ 87(2)(b) was uncooperative with the investigation and did not provide a statement.

§ 87(2)(b) refused to provide a statement.

§ 87(2)(b) (BR06) stated that two officers stopped their vehicle on Jamaica Avenue and ran towards the Nissan, § 87(2)(b) who was parked in front of the Cohen's Fashion Optical Store, began driving northbound towards 164th Street for about twenty to thirty feet. Another police vehicle stopped in front of § 87(2)(b) vehicle, blocking traffic. The two initial officers approached § 87(2)(b) vehicle on both sides.

PO Whyte (BR07) stated that he and PO Bodenmiller received notification of a 911 call reporting the violation of an order of protection. The call described the perpetrator's vehicle as a

silver Nissan and provided the license plate. Upon arrival, § 87(2)(b) boss approached PO Whyte. She pointed at § 87(2)(b) vehicle and stated, “that’s him.” She explained that § 87(2)(b) went to § 87(2)(b) job and refused to let her leave. § 87(2)(b) boss confirmed that she was giving § 87(2)(b) a ride home and was aware of the order of protection she had against § 87(2)(b) § 87(2)(b) was on scene, seated in the vehicle that was on the southbound corner of Jamaica Avenue and 163rd Street. PO Whyte and PO Bodenmiller approached § 87(2)(b) vehicle, which was slowly driving eastbound. PO Whyte tapped on the rear of the vehicle and instructed the driver to lower the windows. § 87(2)(b) stopped the vehicle.

PO Bodenmiller’s statement (BR08) was generally consistent with PO Whyte’s statement, except for the following additional details. PO Bodenmiller stated that the 911 caller informed PO Whyte that § 87(2)(b) was attempting to flee.

EVENT Information § 87(2)(b) (BR09) is consistent with the 911 audio files discussed above.

People v. Peterson, 110 A.D.3d (BR12) found that in order to lawfully stop and detain a particular person, police officers must have reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor. When obtaining reasonable suspicion, officers must consider the similarities in provided descriptions of the defendant, as well as their temporal and spatial proximity to the incident of the crime.

New York Consolidated Law Service, Penal Law § 215.51 (BR13) notes that a person is guilty of criminal contempt in the first degree when while in violation of a duly served order of protection, he or she intentionally places or attempts to place a person for whose protection such order was issued in reasonable fear of physical injury, serious physical injury or death by repeatedly following such person or engaging in a course of conduct or repeatedly committing acts over a period of time. This crime is a Class E felony.

It was undisputed that § 87(2)(b) and her boss called 911 to report that § 87(2)(b) had violated an order of protection and that they provided a location, which was within a city block of where the vehicle stop occurred, and a description of § 87(2)(b) vehicle. It was further undisputed that, upon arriving at the location approximately 30 minutes later, § 87(2)(b) boss pointed out the vehicle directly to PO Bodenmiller and PO Whyte. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (C) Force: In front of § 87(2)(b) Police Officer George Bodenmiller used physical force against § 87(2)(b)

Allegation (D) Force: In front of § 87(2)(b) Police Officer George Bodenmiller used a chokehold against § 87(2)(b)

Allegation (E) Force: In front of § 87(2)(b) Police Officer George Bodenmiller used physical force against § 87(2)(b)

Allegation (F) Force: In front of § 87(2)(b) Lieutenant John Jata used physical force against § 87(2)(b)

Allegation (G) Force: In front of § 87(2)(b) Police Officer Matthew Simpson used physical force against § 87(2)(b)

Allegation (H) Force: In front of § 87(2)(b) Police Officer Derval Whyte used physical force against § 87(2)(b)

Allegation (I) Force: In front of § 87(2)(b) Police Officer Gregory Gromling used physical force against § 87(2)(b)

§ 87(2)(b) (BR05) stated that when the officers initially approached, PO Bodenmiller aggressively pulled on the outside handle of his driver’s side door. § 87(2)(b) placed his car in park, which he believed the officers interpreted as an attempt to flee. PO Bodenmiller reached his hand into the driver’s side window and opened § 87(2)(b) door from the inside. PO Bodenmiller

reached across § 87(2)(b) body and unbuckled his seatbelt. PO Bodenmiller grabbed § 87(2)(b) shirt by the chest area and pulled him out of the vehicle. While pulling § 87(2)(b) the shirt made contact with § 87(2)(b) neck and throat, pressing on the area. § 87(2)(b) was unable to estimate how long the shirt was on his neck. § 87(2)(b) denied that his breathing was restricted.

Once out of the vehicle, PO Bodenmiller grabbed § 87(2)(b) left arm and turned his body toward his vehicle. Another officer, likely PO Simpson, held onto § 87(2)(b) right arm, holding him in place. § 87(2)(b) held his hands by his side. The officers instructed him to place his hands on top of the vehicle, and he did. § 87(2)(b) initially stated that officers searched him and retrieved his car keys but later stated that none of the officers patted him down or entered his pockets. There were about seven officers gathered behind § 87(2)(b) § 87(2)(b) was not resisting, but he did not give the officers his hands. § 87(2)(b) kept his hands “resting on the vehicle,” while the officers forcefully pulled his arms backwards, which hurt his shoulders.

In PO Bodenmiller’s BWC (**BR14**), at the 01:35 mark, PO Bodenmiller approaches § 87(2)(b) vehicle on the driver’s side and knocks on the rear passenger window. § 87(2)(b) lowers his window. PO Bodenmiller tells § 87(2)(b) to open the door multiple times. Lt. Jata approaches and tells § 87(2)(b) to put the vehicle in park multiple times. § 87(2)(b) asks why he is being stopped. PO Bodenmiller asks § 87(2)(b) to put the vehicle in park again, and § 87(2)(b) does not. At the 01:56 mark, PO Bodenmiller reaches his arm into the driver’s window of § 87(2)(b) vehicle and opens the door from the inside. He unbuckles § 87(2)(b) seatbelt, places both hands on § 87(2)(b) left forearm, and § 87(2)(b) steps out on his own. PO Bodenmiller is not captured pulling § 87(2)(b) arm or making contact with § 87(2)(b) clothing.

Once out of the vehicle, at the 02:06 mark, PO Bodenmiller moves § 87(2)(b) left arm toward his back. § 87(2)(b) makes a fist with his hand and tenses his entire arm. Several officers assist PO Bodenmiller in pulling § 87(2)(b) arms behind his back, as § 87(2)(b) tenses and moves his arms in front of him. The officers tell § 87(2)(b) to relax and to stop tensing. At the 02:51 mark, the officers secure § 87(2)(b) handcuffs.

Sgt. Caliguri’s BWC (**BR15**) captures, from the 01:21 mark, PO Bodenmiller, PO Gromling, PO Simpson, and Lieutenant Jata placing § 87(2)(b) in handcuffs. Lieutenant Jata is on § 87(2)(b) right side attempting to bring § 87(2)(b) tensed right arm behind his back. At the 01:29 mark, PO Whyte approaches and places an arm between the officers in front of him. It is unclear what he does with his arm.

Lieutenant Jata’s (**BR16**), PO Simpson’s (**BR17**), and PO Gromling’s (**BR18**) BWCs fall off during the handcuffing process and do not provide a comprehensive account of these allegations. None of the discussed footage captures an officer making any physical contact with any part of § 87(2)(b) body apart from his arms.

§ 87(2)(b) Department Store surveillance footage (**BR03**) shows, at the 13:40 mark, that PO Bodenmiller opens the driver’s side door and pulls § 87(2)(b) out of the vehicle. Multiple officers, including Lieutenant Jata, pull § 87(2)(b) arms behind his back and guide the front of his body toward his vehicle. A struggle ensues, where § 87(2)(b) is pulling away from the vehicle and the officers push his body against his vehicle. The officers hold § 87(2)(b) in that position. The video is not comprehensive and does not capture the officers’ actions clearly.

§ 87(2)(b) (**BR06**) stated that upon approach, the officers asked § 87(2)(b) to step out of the car. § 87(2)(b) refused, while cursing and yelling at the officers in a way that § 87(2)(b) described as “really, really nasty.” The officers asked § 87(2)(b) to step out of the vehicle at least five or six times, but § 87(2)(b) remained in the vehicle and continued to curse and yell. § 87(2)(b) did not recall anything specific that § 87(2)(b) said. The officers spoke to him for about two minutes before one of the officers pulled the driver’s side door handle open. Four or five officers removed § 87(2)(b) out of the vehicle by grabbing him under his arm and pulling his shoulder. None of the officers pulled § 87(2)(b) by his shirt. § 87(2)(b) was kicking and being “vulgar and violent.” § 87(2)(b) did not see any officers make contact with § 87(2)(b) neck or throat.

Once out of the vehicle, the officers pulled § 87(2)(b) arms behind his back and placed

him in handcuffs. § 87(2)(b) continued resisting the officers by kicking, cursing, and screaming, but he did not make any movements with his arms. § 87(2)(b) did not see the officers ever press § 87(2)(b) against the vehicle, pat his body down, or go into any of his pockets.

PO Bodenmiller's statement (BR08) was consistent with the BWC. Regarding § 87(2)(b) statement about being choked, PO Bodenmiller denied making contact with § 87(2)(b) neck at any point in the incident.

Lieutenant Jata's statement (BR19) was generally consistent with BWC. Lieutenant Jata added that § 87(2)(b) was under arrest upon the officers' initial approach of the vehicle, given that he was positively identified as the perpetrator of a crime.

PO Simpson's statement (BR20) was generally consistent with BWC, except he did not recall how PO Bodenmiller removed § 87(2)(b) from the vehicle.

PO Whyte (BR07) stated that his supervisor instructed him to stand by the passenger side of the vehicle. Therefore, he did not clearly witness the initial interactions with § 87(2)(b). Once § 87(2)(b) stepped out of the vehicle, PO Whyte observed § 87(2)(b) tensing his body and not complying. By the time PO Whyte walked around to the driver's side, about four other officers were already assisting PO Bodenmiller. PO Whyte was unable to get through the other officers to assist and may have only been able to hold onto one of § 87(2)(b) hands. The remainder of his statement was generally consistent with BWC.

PO Gromling's statement (BR21) was generally consistent with BWC.

Threat, Resistance, or Injury Report § 87(2)(b) (BR22), prepared by Captain Timothy Schultz, notes that officers responded to a crime in progress. PO Bodenmiller approached the vehicle involved in the crime and removed § 87(2)(b) from the vehicle after he refused to place the vehicle in park and step out on his own. When placing him in handcuffs, § 87(2)(b) tensed and flailed his arms—actively resisting arrest and disobeying lawful orders by PO Bodenmiller. PO Bodenmiller used the least amount of force possible to overcome the resistance. Once in handcuffs, § 87(2)(b) was transported to the RMP, here he alleged that PO Bodenmiller choked him and touched his private parts.

§ 87(2)(b) was arrested as a result of this incident. § 87(2)(b) As such, the investigation was unable to obtain a copy of his arrest report.

Patrol Guide procedure 221-01 (BR23) states that when determining if force is reasonable, uniformed members of service should consider the following: "The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence." Members are prohibited from using a chokehold, which is defined as "any pressure to the throat or windpipe [that] may prevent or hinder breathing or reduce intake of air.

Patrol Guide procedure 221-02 (BR24) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

The discussed BWC, which is consistent with the officers' statements, indicates that § 87(2)(b) was noncompliant with the officers' lawful orders upon their initial approach of the vehicle. Given that § 87(2)(b) was under arrest, according to Lieutenant Jata, who was the most senior

officer on scene, § 87(2)(g)

Additionally, the discussed BWC, which comprehensively captures § 87(2)(b) exit from his vehicle, does not capture PO Bodenmiller—the only officer making physical contact with him—pulling on § 87(2)(b) shirt, or § 87(2)(b) shirt making contact with his neck in any way. PO Bodenmiller only touched § 87(2)(b) arm when escorting him out. § 87(2)(g)

It is undisputed that § 87(2)(b) was under arrest and that he physically resisted being placed in handcuffs by tensing his arms and not putting them behind his back as instructed. § 87(2)(g)

Allegation (J) Abuse of Authority: In front of § 87(2)(b) Police Officer Gregory Gromling forcibly touched § 87(2)(b)

Allegation (K) Abuse of Authority: In front of § 87(2)(b) Police Officer Gregory Gromling conducted a sexually motivated frisk of § 87(2)(b)

No BWC captures PO Gromling frisking or searching § 87(2)(b) while he is being handcuffed.

§ 87(2)(b) (BR05) stated that when being placed in handcuffs, one of the officers behind him crouched down to the ground, between two officers, and reached his hand toward § 87(2)(b) buttocks. § 87(2)(b) sweatpants were secured on his waist and his underwear was not exposed. The officer reached upward from the ground, placing his hand inside of the buttocks area of § 87(2)(b) sweatpants, outside of his underwear. The officer pressed his thumb against the outside of § 87(2)(b) anus and pressed his index finger toward the area just below the anus, and just above his testicles. The officer made a grabbing motion with his two fingers, bringing his thumb and index finger together and pulling the underwear. § 87(2)(b) described the action as a “pinch.” § 87(2)(b) did not feel the officer attempting to place his hand inside of his underwear. The contact lasted about 10 minutes.

§ 87(2)(b) (BR06) never saw any officer crouched on the ground while making physical contact with § 87(2)(b)

PO Gromling (BR21) stated that § 87(2)(b) held his arms in front of him during the handcuffing process, which caused concern in PO Gromling that § 87(2)(b) may have been concealing a weapon. There were no other indications that he was armed, as his back was toward PO Gromling and he was unable to see any buds. PO Gromling crouched toward the ground and patted down § 87(2)(b) waist and underneath his genitals from outside of his pants. PO Gromling did not recall patting down any other area or any other officer assisting him. PO Gromling did not feel anything during the pat down that indicated he had a weapon. PO Gromling did not recall what § 87(2)(b) was wearing or if his underwear was ever exposed during the handcuffing process. PO Gromling did not place his hand inside of the buttocks area of § 87(2)(b) sweatpants. He did not press his thumb against the outside of § 87(2)(b) anus or place his index finger by his testicles, in a pinching motion. PO Gromling did not see any other officer reaching into § 87(2)(b) clothing. The patting down was about 20 seconds. PO Gromling did not recall § 87(2)(b) making any statements during the pat down or indicating in any way that he was uncomfortable.

PO Bodenmiller (BR08) denied seeing any officer crouching down behind § 87(2)(b) reaching up, and placing his hand inside the buttocks area of his sweatpants. He denied seeing any officer pressing their thumb against the outside of § 87(2)(b) anus and pressing their index finger around the area just below his anus. PO Bodenmiller did not recall § 87(2)(b) making any

statements about feeling uncomfortable or an officer making inappropriate contact with him. An officer searched § 87(2)(b) prior to placing him into the police vehicle, but PO Bodenmiller did not recall who.

Lieutenant Jata (**BR19**), PO Simpson (**BR20**), and PO Whyte (**BR07**) consistently denied seeing any officer frisking or searching § 87(2)(b) while he was handcuffed or making any contact with his genital area.

While PO Gromling stated that he knelt down and frisked § 87(2)(b) waist and under his genitals over his clothing incident to his arrest, he denied placing his hands inside the buttocks area of § 87(2)(b) sweatpants and making the grabbing motion that § 87(2)(b) described. The other officers consistently stated that they did not observe any officer, including PO Gromling, searching or frisking § 87(2)(b) or making contact with his genital area. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (L) Force: In front of § 87(2)(b) Police Officer George Bodenmiller used physical force against § 87(2)(b)

Allegation (M) Force: In front of § 87(2)(b) Police Officer Matthew Simpson used physical force against § 87(2)(b)

Allegation (N) Force: In front of § 87(2)(b) Police Officer Gregory Gromling used physical force against § 87(2)(b)

PO Gromling's BWC (**BR18**) shows, at the 02:43 mark, PO Bodenmiller, PO Simpson, and PO Gromling escort § 87(2)(b) to a marked RMP, which is several feet away. PO Bodenmiller hooks his right arm underneath § 87(2)(b) left arm, PO Simpson hooks his left arm underneath § 87(2)(b) right arm, while PO Gromling holds onto § 87(2)(b) handcuffs from behind. § 87(2)(b) initially walks on his own but stops in his tracks a few seconds after the officers begin escorting him and screams that the officers are abusing him. PO Gromling tells § 87(2)(b) to stop locking his legs. § 87(2)(b) repeats that the officers are abusing him. At the 02:56 mark, PO Gromling grabs § 87(2)(b) left leg and lifts his lower body off the ground. The officers carry § 87(2)(b) to the RMP. Once they arrive at the RMP, at the 03:02 mark, PO Gromling releases § 87(2)(b) leg, while PO Bodenmiller and PO Simpson remain holding his arms to help him into the vehicle.

§ 87(2)(b) Department Store surveillance footage (**BR03**) is consistent with PO Gromling's BWC.

§ 87(2)(b) (**BR05**) stated that after he was in handcuffs, about four to five officers escorted him to a police vehicle. § 87(2)(b) was not cooperating with walking to the vehicle, standing his ground and not moving. The officers pulled § 87(2)(b) arms toward the vehicle, which he described as dragging. After dragging him halfway to the vehicle, the five officers lifted § 87(2)(b) off of the ground. Some officers lifted § 87(2)(b) legs, while others held his waist and upper body. § 87(2)(b) did not remember what role each officer played in lifting his body.

§ 87(2)(b) (**BR06**) stated that the officers escorted § 87(2)(b) to the police vehicle. He did not state that they used any force.

PO Bodenmiller (**BR08**) stated that once § 87(2)(b) was in handcuffs, he and another officer escorted § 87(2)(b) to an RMP. § 87(2)(b) went limp and dropped his body toward the ground, with his knees potentially touching the ground. PO Bodenmiller believed § 87(2)(b) intentionally collapsed. PO Bodenmiller and another officer placed their arms underneath § 87(2)(b) armpits and lifted him up to a standing position. They walked with § 87(2)(b) to the police vehicle.

PO Simpson's statement (**BR20**) was generally consistent with PO Bodenmiller's statement.

PO Gromling's (**BR21**) stated that he assisted PO Bodenmiller and PO Simpson in

escorting § 87(2)(b) to the police vehicle. His statement was consistent with both officers regarding § 87(2)(b) resistance. PO Gromling lifted his legs and carried § 87(2)(b) to the police vehicle to overcome his resistance.

Threat, Resistance, or Injury Report § 87(2)(b) (BR22), the only TRI prepared regarding this incident, does not note any force used when transporting § 87(2)(b) to the vehicle.

Patrol Guide procedure 221-01 (BR23) states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject’s violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.”

Patrol Guide procedure 221-02 (BR24) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

It is undisputed that § 87(2)(b) physically resisted when the officers escorted him to the police vehicle, after he was placed in handcuffs. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (O) Force: In front of § 87(2)(b) Police Officer George Bodenmiller used physical force against § 87(2)(b)

Allegation (P) Force: In front of § 87(2)(b) Police Officer Matthew Simpson used physical force against § 87(2)(b)

Allegation (Q) Force: In front of § 87(2)(b) Police Officer Gregory Gromling used physical force against § 87(2)(b)

Allegation (R) Force: In front of § 87(2)(b) Police Officer Gregory Gromling used a chokehold against § 87(2)(b)

Allegation (S) Force: In front of § 87(2)(b) Police Officer Gregory Gromling restricted § 87(2)(b) breathing.

Allegation (T) Force: In front of § 87(2)(b) Police Officer Gregory Gromling used physical force against § 87(2)(b)

Allegation (U) Abuse of Authority: In front of § 87(2)(b) Police Officer George Bodenmiller forcibly touched § 87(2)(b)

Sgt. Caliguri’s BWC (BR15) shows that, at the 02:53 mark, PO Bodenmiller, PO Simpson, and PO Gromling reach the police vehicle and help § 87(2)(b) inside. PO Bodenmiller and PO Gromling push § 87(2)(b) chest inside of the vehicle, while his back is facing the inside of the rear seat on the driver’s side. § 87(2)(b) pushes his chest against the officers, preventing them from getting him inside the vehicle. At the 02:55 mark, PO Gromling’s hand is on § 87(2)(b) neck for about one second (BR37) as he pushes § 87(2)(b) into the vehicle. Immediately after, § 87(2)(b) asks, “Why are you choking me,” multiple times. It is unclear if pressure is applied to the neck or

throat. At the 03:00 mark, PO Bodenmiller has both arms underneath § 87(2)(b) thighs, lifting them up and pushing his body toward the interior of the vehicle. § 87(2)(b) asks, “Why are you touching my balls?” and “Why are you touching my privates?” several times in that process. It is unclear if PO Bodenmiller made contact with § 87(2)(b) genitals from underneath his legs.

PO Gromling’s BWC (**BR18**) shows, at the 03:09 mark, that when helping § 87(2)(b) into the vehicle, PO Gromling walks around to the opposite side of the vehicle and pulls § 87(2)(b) further into the vehicle by pulling § 87(2)(b) handcuffs. Three screenshots, from the 3:22 mark, the 3:28 mark, and the 3:30 mark, capture this (**BR40, BR41, BR42**). PO Gromling pulls § 87(2)(b) behind the passenger seat and secures his seatbelt. Prior to PO Gromling pulling § 87(2)(b) into the vehicle, the officers’ efforts to get § 87(2)(b) into the vehicle were unsuccessful.

§ 87(2)(b) (**BR05**) stated that the officers “threw” him in the police vehicle, which he described as similar to the process of tossing a duffle bag into a vehicle. § 87(2)(b) landed on his back. PO Gromling went on the opposite side of the vehicle and pulled § 87(2)(b) further into the vehicle by pulling his handcuffs toward him from behind § 87(2)(b). § 87(2)(b) stated that the pulling of his handcuffs hurt his wrists. § 87(2)(b) did not allege any sexual misconduct when being placed into the police vehicle.

§ 87(2)(b) (**BR06**) stated that the officers placed § 87(2)(b) in the police vehicle in a way that he described as “normal.” § 87(2)(b) did not see any officer pull § 87(2)(b) into the car from the opposite side of the vehicle. Other than pulling him out of the car, cuffing him, and placing him in the police vehicle, officers did not make any other physical contact with § 87(2)(b).

PO Bodenmiller (**BR08**) stated that when attempting to place § 87(2)(b) in the RMP, PO Bodenmiller helped § 87(2)(b) sit down first. § 87(2)(b) back was toward the inside of the car, with his legs on the ground. § 87(2)(b) slid his buttocks off the seat and toward the ground, as PO Bodenmiller guided him into the vehicle. Additional officers assisted PO Bodenmiller, but he did not recall how many or what they did specifically. PO Bodenmiller grabbed the thigh-area of § 87(2)(b) pants, lifted his lower body, and guided him further into the vehicle. PO Bodenmiller denied “throwing” § 87(2)(b) body into the vehicle. § 87(2)(b) stated he was being choked and could not breathe. PO Bodenmiller denied making contact with § 87(2)(b) neck at any point. PO Bodenmiller did not see any officer making contact with § 87(2)(b) upper body when he alleged that he could not breathe. PO Bodenmiller did not observe any indication that § 87(2)(b) could not breathe, apart from his statements about it. § 87(2)(b) made statements about PO Bodenmiller “touching his dick.” PO Bodenmiller denied making contact with § 87(2)(b) genitals and had no knowledge of doing so incidentally. PO Bodenmiller stated that no one, at any point, touched § 87(2)(b) in a sexual manner.

PO Simpson (**BR20**) stated that when placing § 87(2)(b) in the vehicle, he refused to sit inside of the vehicle—turning his body away from the vehicle and tensing up. PO Simpson held onto § 87(2)(b) right arm, while other officers lifted § 87(2)(b) and placed him in the vehicle. PO Simpson did not recall how they lifted him. PO Simpson did not recall seeing any officer make contact with § 87(2)(b) neck or throat while placing him in the car. PO Simpson did not recall § 87(2)(b) stating that he could not breathe. PO Simpson did not recall observing any indication that § 87(2)(b) could not breathe. PO Simpson did not recall any officer walking around the vehicle to help bring § 87(2)(b) into the vehicle. PO Simpson did not recall hearing § 87(2)(b) complaining about anyone touching his privates, nor did he see any officer make contact with § 87(2)(b) genitals.

PO Gromling (**BR21**) stated that while placing § 87(2)(b) into the vehicle, § 87(2)(b) resisted by shouting. PO Gromling did not recall § 87(2)(b) positioning when placing him into the vehicle or actions officers took to get him inside. PO Gromling did not recall making contact with § 87(2)(b) neck or throat when placing him in the vehicle. After watching his BWC, from the 03:11 mark, PO Gromling heard § 87(2)(b) complaining of an officer choking him, but he did not observe any indication of that happening. When shown Sgt. Caliguri’s BWC, from the 02:49 mark, PO Gromling did not see his hand touching § 87(2)(b) neck. When playing a frame by frame view,

PO Gromling saw his hand by § 87(2)(b) neck at the 02:55 mark, but he stated that it did not make contact. The hand went past the neck. PO Gromling did not see any other officer touching § 87(2)(b) neck. PO Gromling did not observe any indication that § 87(2)(b) could not breathe, including any statements from § 87(2)(b) regarding being unable to breathe.

PO Gromling walked around the vehicle to pull § 87(2)(b) into the vehicle by his wrists. PO Gromling confirmed that he was grabbing § 87(2)(b) wrists, but that his hand is so large that he grabbed one of his wrists and a part of his handcuffs. PO Gromling pulled him back in that manner because § 87(2)(b) was not moving further into the vehicle on his own. PO Gromling did not see any officer touching § 87(2)(b) genitals.

Threat, Resistance, or Injury Report § 87(2)(b) (BR22), prepared by Captain Timothy Schultz, notes that once § 87(2)(b) was in handcuffs, he was transported to the RMP, where he alleged that PO Bodenmiller choked him and touched his private parts.

Patrol Guide procedure 208-02 (BR25) notes that when placing an individual under arrest, they must be placed in handcuffs and removed to the precinct of arrest.

Patrol Guide procedure 221-01 (BR23) states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject’s violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” Members are prohibited from using a chokehold, which is defined as “any pressure to the throat or windpipe [that] may prevent or hinder breathing or reduce intake of air.

Patrol Guide procedure 221-02 (BR24) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

The discussed BWC captures § 87(2)(b) physically resisting when being placed in the police vehicle, which is consistent with the officers’ statements. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Although PO Gromling denied applying pressure to § 87(2)(b) neck, BWC footage clearly captures PO Gromling with his hand at the front of § 87(2)(b) neck by the windpipe. While the contact was brief and § 87(2)(b) was resisting officers’ attempts to place him in the back of their vehicle, § 87(2)(b) was outnumbered by officers three-to-one, in handcuffs, and already at the back of the vehicle. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Despite PO Gromling’s clear contact with § 87(2)(b) neck, it is unclear how much pressure was applied, if any, and if the contact restricted § 87(2)(b) breathing. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

The discussed BWC shows that the officers’ initial attempts to place § 87(2)(b) in the police vehicle were unsuccessful in overcoming § 87(2)(b) resistance. The Patrol Guide specifies that the officers were required to place § 87(2)(b) in the police vehicle in order to transport him to

the stationhouse. While PO Gromling stated that his hands are large and that he grabbed part of the handcuffs along with § 87(2)(b) hand while attempting to pull § 87(2)(b) back into the vehicle, BWC clearly shows that PO Gromling's primary point of contact was not § 87(2)(b) hand but, rather, the chain link between the handcuffs. Furthermore, BWC captures that the pulling motion was made when PO Gromling had hold of the chain link, not § 87(2)(b) hand. § 87(2)(g) § 87(2)(b) was already in the vehicle and that there were two officers on the other side of the vehicle assisting in placing him inside. § 87(2)(g)

The discussed BWC shows that PO Bodenmiller's hands were below § 87(2)(b) thighs while he lifted § 87(2)(b) lower body and pushed it toward the inside of the vehicle, at which point § 87(2)(b) alleged that the officers "touch[ed] his balls" and his "privates." PO Bodenmiller denied making contact with § 87(2)(b) genitals when placing him in the police vehicle, which PO Simpson and PO Gromling consistently denied witnessing. § 87(2)(g)

§ 87(2)(g) PO Bodenmiller denied making the alleged sexual contact, and that the BWC does not comprehensively capture this portion of the incident. § 87(2)(g)

Allegation (V) Abuse of Authority: In front of § 87(2)(b) Police Officer Garrett Poliey threatened to arrest § 87(2)(b)

Allegation (W) Force: In front of § 87(2)(b) Police Officer Garrett Poliey used physical force against § 87(2)(b)

PO Poliey's BWC (BR26) shows that, at the 02:24 mark, PO Poliey asks § 87(2)(b) who is by the passenger side of § 87(2)(b) vehicle, to step to the side. § 87(2)(b) refuses and says she is going to get back in the car because she has nothing to do with the incident. PO Poliey asks her multiple times to step to the side and § 87(2)(b) refuses. At the 02:48 mark, PO Poliey grabs § 87(2)(b) left arm and lets go when § 87(2)(b) asks him not to touch her. At the 02:51 mark, PO Poliey tells her if she does not step to the sidewalk, he will put her in cuffs. He reiterates to go to the curb, and she tells him to relax, remaining in place. He tells her that he will place her on the curb if she does not move. He tells her he is giving her a lawful order to go to the sidewalk. § 87(2)(b) says she is going to get her belongings and he is going to relax. At the 03:13 mark PO Poliey grabs § 87(2)(b) left arm with both hands and pulls her away from the vehicle.

§ 87(2)(b) was uncooperative with the investigation and did not provide a statement.

§ 87(2)(b) (BR05) did not witness any interactions between § 87(2)(b) and the officers on the passenger side.

§ 87(2)(b) (BR06) stated that § 87(2)(b) got out of the car on her own and began cursing at the officers. None of the officers made physical contact with her.

PO Poliey (BR27) stated that when he approached the passenger side of the vehicle, § 87(2)(b) had already exited the vehicle. She stated that she was going to step back into the vehicle. PO Poliey instructed § 87(2)(b) to wait until the officers allowed her to enter the vehicle, as it was unsafe for her to re-enter a legally stopped vehicle. PO Poliey told § 87(2)(b) to step to the side of the road several times. § 87(2)(b) stated that she would do what she wanted. PO Poliey informed her that if she did not follow his lawful orders, she could be "put in cuffs," which he stated meant that she could be arrested for obstruction of governmental administration or failure to listen to a police officer. § 87(2)(b) attempted to enter the vehicle in order to retrieve her belongings, despite PO Poliey's commands to step back. After about a few minutes of § 87(2)(b) noncompliance, PO Poliey grabbed her left upper arm with his right hand and pushed her about two feet toward the sidewalk. § 87(2)(b) did not stumble or fall as a result of the push. She remained standing. § 87(2)(b)

§ 87(2)(b) became irate—using racial slurs and blaming PO Poiley because he was a “white cop.” § 87(2)(b) did not approach the vehicle again.

The investigation did not receive a Threat, Resistance, or Injury report documenting PO Poiley’s use of force.

People v. Robinson 74 N.Y.2d 773 (BR28) found that officers are allowed to ask individuals to step out of a “lawfully stopped and detained vehicle because the inherent and inordinate danger to investigating police officers in completing their authorized official responsibilities in such circumstances justifies that precautionary action.”

New York Consolidated Law Service, Penal Law § 195.05 (BR29) notes that a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs or perverts the administration of law or other governmental function by means of intimidation, physical force or interference.

Patrol Guide procedure 221-01 (BR23) states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject’s violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” Members are prohibited from using a chokehold, which is defined as “any pressure to the throat or windpipe [that] may prevent or hinder breathing or reduce intake of air.

Patrol Guide procedure 221-02 (BR24) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

As noted in the BWC and PO Poiley’s statement, § 87(2)(b) repeatedly attempted to reach into a vehicle from which she was lawfully removed and was noncompliant with orders given to her during an investigation into the vehicle. According to the New York CLS, § 87(2)(b) was committing obstruction of governmental administration (OGA). § 87(2)(g)

The discussed BWC, which is consistent with PO Poiley’s statement, captures PO Poiley instructing § 87(2)(b) to step away from the vehicle multiple times, which she did not do. § 87(2)(g)

Allegation (X) Force: At the 103rd Precinct Stationhouse, Police Officer Gregory Gromling used physical force against § 87(2)(b)

Allegation (Y) Discourtesy: At the 103rd Precinct Stationhouse, Police Officer Gregory Gromling spoke discourteously to § 87(2)(b)

PO Gromling’s BWC (BR18) captures § 87(2)(b) removal from the police vehicle upon arrival at the stationhouse. At the 06:46 mark, PO Gromling and PO Bodenmiller approach the rear of the vehicle. PO Gromling says, “he’s going to resist.” PO Bodenmiller opens the door, and § 87(2)(b)

§ 87(2)(b) immediately says, “Don’t fucking touch me. Get another officer.” PO Gromling unfastens § 87(2)(b) seatbelt with his right hand, while grabbing onto § 87(2)(b) right arm with his left hand. § 87(2)(b) states, “I want another two officers,” and makes no effort to exit the vehicle. PO Gromling keeps his arm on § 87(2)(b) right arm and grabs § 87(2)(b) right leg with his free arm. He tells § 87(2)(b) to get out of the car. PO Gromling pulls § 87(2)(b) toward him and out of the vehicle, while saying, “get out of the fucking car.” PO Bodenmiller and PO Gromling walk with § 87(2)(b) into the stationhouse.

§ 87(2)(b) (**BR05**) stated that upon arrival at the stationhouse, the officers that drove him there helped him out of the vehicle and into the stationhouse without incident.

PO Gromling (**BR21**) stated that when removing § 87(2)(b) from the vehicle, he told § 87(2)(b) to step out. He grabbed § 87(2)(b) leg and pulled him out because he knew that § 87(2)(b) would resist. He grabbed his leg because § 87(2)(b) did not turn to exit the vehicle after PO Gromling removed his seatbelt. PO Gromling stated, “get the fuck out of the car,” because it just came out. He acknowledged that it was not the correct thing to do. He added that his use of profanity was in order to indicate that he was serious about his command.

PO Bodenmiller stated (**BR08**) that upon arrival at the stationhouse, PO Gromling removed § 87(2)(b) from the vehicle. § 87(2)(b) began resisting—potentially kicking. § 87(2)(b) continued screaming. PO Gromling and PO Bodenmiller escorted § 87(2)(b) into the stationhouse. PO Bodenmiller did not specifically recall any difficulty escorting § 87(2)(b) into the stationhouse.

The investigation did not receive any Threat, Resistance, or Injury reports reflecting the use of force when removing § 87(2)(b) from the police vehicle.

DAO-DCT Case #2015-15012 (**BR30**) found that officers are permitted to use profanity when used in a statement that serves a legitimate law enforcement purpose in a dynamic situation where officers are trying to gain control and its sole purpose is not to belittle.

Patrol Guide Procedure 200-02 (**BR38**) notes that the NYPD’s mission is to, in partnership with the community, value human life, respect the dignity of each individual, and render our services with courtesy and civility, while also maintaining a higher standard of integrity than is generally expected of others.

Patrol Guide Procedure 221-01 (**BR23**) states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject’s violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” Members are prohibited from using a chokehold, which is defined as “any pressure to the throat or windpipe [that] may prevent or hinder breathing or reduce intake of air.

Patrol Guide Procedure 221-02 (**BR24**) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

The discussed BWC shows that § 87(2)(b) was verbally noncompliant immediately after PO Gromling opened the rear passenger door and did not take any steps to voluntarily exit the vehicle. Given § 87(2)(b) previous resistance with entering and exiting vehicles on scene, his noncompliance upon arrival at the stationhouse, and his evident displeasure with PO Gromling and PO Bodenmiller upon arrival at the stationhouse, § 87(2)(g)

§ 87(2)(g)

In the course of removing § 87(2)(b) from the vehicle, PO Gromling told him to get out of “the fucking car.” Although noncompliant, § 87(2)(b) was in handcuffs, outside of the stationhouse, and outnumbered by officers. Additionally, § 87(2)(b) was not posing any kind of imminent threat or causing a highly stressful situation. § 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the only CCRB complaint in which § 87(2)(b) and § 87(2)(b) have been named parties (BR31, BR39).
- PO Whyte has been a member of service for one year. He has been named the subject in two other CCRB complaints and two allegations, none of which have been substantiated.
§ 87(2)(g)
- PO Bodenmiller has been a member of service for one year. He has been named the subject in two other CCRB complaints and four allegations, none of which have been substantiated.
§ 87(2)(g)
- PO Poliey has been a member of service for five years. He has been named the subject in four other CCRB complaints and six allegations, none of which have been substantiated.
§ 87(2)(g)
- PO Gromling has been a member of service for eight years. He has been named the subject in five other CCRB complaints and 11 allegations, § 87(2)(g), § 87(4-b)
 - § 87(2)(g), § 87(4-b)
 - § 87(2)(g)
- Lieutenant Jata has been a member of service for 16 years. He has been named the subject in two other CCRB complaints and two allegations, none of which have been substantiated.
§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- This case was unsuitable for mediation.
- On February 28, 2023, the Office of the New York City Comptroller confirmed that neither § 87(2)(b) nor § 87(2)(b) filed a notice of claim regarding this incident (**BR32**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 10

Investigator:	<u>Jessica Russo</u>	<u>SI Jessica Russo</u>
	Signature	Print Title & Name
		<u>04/13/2023</u>
		Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>
	Signature	Print Title & Name
		<u>09/26/2023</u>
		Date

Reviewer:	<u></u>	<u></u>
	Signature	Print Title & Name
		<u></u>
		Date